

**CYBER-SECURITIES PURCHASE AGREEMENT**  
**(simultaneous sign/close)**  
**V2**

This Cyber-Securities Purchase Agreement (this “**Agreement**”) is being entered into as of the time of completion of the Adoption Procedures by an entity selling and issuing a certain security or certain securities of such entity as set forth on Exhibit A (the “**Security(ies)**”) pursuant to this Agreement (the “**Company**”) and an individual or entity purchasing the Security(ies) pursuant to this Agreement (the “**Investor**” and together with the Company, the “**Parties**” and each a “**Party**”) with the intention of completing a potential Security(ies) Purchase wherein the Investor will purchase the Security(ies) from the Company for an amount of U.S. dollar value (the “**Purchase Amount**”) paid for by the Investor in Blockchain Tokens, with the Security(ies) being represented by one or more Certificate Tokens to be issued to the Investor on the Designated Blockchain System.

The Parties wish to enter into this Agreement via specific Blockchain Systems and to commit their respective Blockchain Tokens to the control of a particular Smart Contract that will serve as a non-custodial escrow enabling automated entry into this Agreement and consummation of the Security(ies) Purchase.

Certain capitalized terms used in this Agreement are defined in Section 5.

The Agreement Template for this Agreement, and certain of the Deal Management Technologies assisting with the execution and delivery of this Agreement and the consummation of the Security(ies) Purchase, were authored and deployed by MetaLeX. By entering into or using this Agreement or any of the Deal Management Technologies, you also acknowledge and agree to the MetaLeX Terms, License and Disclaimers set forth on Exhibit D. Additionally if you are using the MetaLeX Web Application in connection with the foregoing, you agree to the MetaLeX Web App Terms of Service.

**1. Security(ies) Purchase.**

- 1.1 Security(ies) Purchase Terms.** The Company hereby sells and issues the Security(ies) (represented as one or more Certificate Tokens on the Designated Blockchain System) to the Investor, and the Investor hereby purchases the Security(ies) by paying the Purchase Amount (represented as certain Blockchain Tokens on the Designated Blockchain System (the “**Purchase Amount Tokens**”)) to the Company (such sale, issuance, and purchase, the “**Security(ies) Purchase**”).
- 1.2 Adoption Procedures.** The Parties shall mutually execute and deliver this Agreement and consummate the Security(ies) Purchase by following the Adoption Procedures set forth in Section 5.1. Completion of the Adoption Procedures by the Parties will cause the details of this Agreement and the Security(ies) Purchase to be recorded on the Designated Blockchain System and will deploy certain Smart Contracts on the Designated Blockchain System to assist with the performance of the Parties’ respective obligations under this Agreement, including the Round Manager Smart Contract that will escrow the Parties’ respective Blockchain Tokens (i.e., the Purchase Amount Tokens and the Certificate Token(s)) and effectuate the Security(ies) Purchase.

**2. Representations/Warranties.**

Each Party hereby represents and warrants, to and for the benefit of the other Party and MetaLeX (as third-party beneficiary of this Section 2) as follows in this Section 2:

- 2.1 Security(ies) Representations/Warranties.** Each Party hereby makes the representations and

warranties set forth in the Security(ies) that are applicable to such Party (based on whether such Party is the Investor or the Company), as if set forth herein.

**2.2 Authorization.**

- (a) If such Party is an entity, all actions necessary to be taken by such Party's directors, managers, officers, members, stockholders, shareholders, debtholders, other holders of equity and/or debt securities, and other persons with a direct or indirect authority over or economic, beneficial or voting interest in such Party in order to authorize such Party to enter into, and perform such Party's obligations under, this Agreement have been taken and such Party has full power and authority to enter into this Agreement.
- (b) If such Party is a natural person, such Party is fully authorized to enter into this Agreement on such Party's own behalf, has the legal capacity to do so, is of the legal age of majority in the jurisdiction of their primary residence, and is of sound mind.

**2.3 Enforceability.** This Agreement, when executed and delivered by such Party and the other Party(ies) hereto, shall constitute a valid and legally binding obligation of such Party, enforceable against such Party in accordance with its terms, except as limited by: (a) applicable bankruptcy, insolvency, reorganization, moratorium, fraudulent conveyance, or other laws of general application relating to or affecting the enforcement of creditors' rights generally or (b) laws relating to the availability of specific performance, injunctive relief, or other equitable remedies.

**2.4 Compliance with Other Agreements Etc.** The execution, delivery and performance of this Agreement and the consummation of the transactions contemplated by this Agreement by such Party will not result in a breach or violation of or default under, or otherwise be in conflict with, any instrument, judgment, order, writ, decree, contract or agreement to which such Party is a Party or by which such Party or any of the Blockchain Tokens to be delivered by such Party pursuant to this Agreement are bound.

**2.5 Local Law Compliance.** Such Party hereby represents that such Party's execution, delivery and performance of this Agreement complies in all material respects with all laws applicable to such Party.

**2.6 Private Key Ownership.** Based on the knowledge of such Party, such Party is the sole and exclusive holder, knower and owner of the private key(s) controlling all blockchain addresses of such Party referred to in or necessary for the performance of this Agreement and of the "seed(s)" used to generate the pairing of such private key(s) with such address(es).

**2.7 AML Compliance.** Based on the knowledge of such Party, none of the Blockchain Tokens to be utilized by such Party in connection with this Agreement are derived from or related to any unlawful activities, including money laundering, terrorist financing or proliferation financing. Based on the knowledge of such Party, neither such Party nor any person for whom such Party is acting as agent or nominee in connection with the Security(ies) Purchase is the subject of (or is subject to) sanctions administered or enforced by any applicable intergovernmental organization or governmental authority, or is organized or residing in a country or territory that is the subject of country-wide or territory-wide sanctions administered or enforced by any applicable intergovernmental organization or governmental authority.

**2.8 Purchase Amount Tokens.** The Investor represents and warrants to the Company that the Purchase Amount Tokens are solely owned by and constitute the property of the Investor, free and clear of

all liens, claims, encumbrances, and transfer restrictions.

- 2.9** No Other Representations. In entering into and performing its obligations under this Agreement, such Party is not relying on any statement, representation or warranty, or omission of any statement, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise), other than the representations and warranties of the other Party expressly set forth in this Section 2. Except to the extent solely based on a breach of the representations and warranties of the other Party expressly set forth in this Section 2 made within the applicable statute of limitations, the other Party will have no liability or other obligation to such Party resulting from any statement, information, representation or warranty, or omission of any statement, information, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise) given to or made to such Party in connection with or relating directly or indirectly to the subject matter of this Agreement.

### **3. Agreements Regarding Use of the Deal Management Technologies**

- 3.1** Agreement to Use and Presumption of Correctness of Deal Management Technologies. By entering into this Agreement, the Parties are agreeing to automate certain aspects of the execution, delivery, and performance of this Agreement and the Security(ies) by means of the Blockchain Systems, Blockchain Tokens, and Smart Contracts referred to in this Agreement (the “**Deal Management Technologies**”). To best secure the benefits of the Deal Management Technologies (including increased efficiency, reduced counterparty performance risk, transparency, reduction of transaction costs, and finality), the Parties hereby agree that in any Dispute, the results of operation of the Deal Management Technologies shall be presumed to be consistent with this Agreement and the Security(ies), to reflect the understanding and intentions of the Parties, and to be final, binding and determinative on the Parties, except to the extent materially adversely affected by any of the following events occurring or being reasonably expected to occur (each, a “**Material Adverse Exception Event**”):

- (a) a Consensus Attack adversely affecting the results or operations of such Designated Smart Contract;
- (b) a change to the consensus rules of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract or could reasonably be expected to result in a “contentious hard fork” (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum;
- (c) a “reorganization” (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract;
- (d) such Designated Smart Contract having become inoperable, inaccessible or unusable, or any Blockchain Tokens under the control of such Designated Smart Contract having become permanently “frozen,” “stuck” or non-transferable (where such a condition shall be deemed “permanent” if such condition would persist except in the event of a change to the consensus rules of the Designated Blockchain System or Ethereum that is not reasonably expected to occur in the near future), including as the result of any code library or repository incorporated by reference into such Designated Smart Contract or any other smart contract or oracle on which such Designated Smart Contract depends in whole or in part having

become inoperable, inaccessible or unusable or having itself suffered a Material Adverse Exception Event, *mutatis mutandis*;

- (e) a material and adverse effect on the use, functionality or performance of such Designated Smart Contract as the result of a clear and manifest bug, defect or error in such Designated Smart Contract, as evidenced by the failure of such Designated Smart Contract to function in accordance with provisions of this Agreement expressly pertaining to such Designated Smart Contract or by documentation or other evidence prepared contemporaneously with the Designated Smart Contract source code demonstrating that the intended functioning of such Designated Smart Contract differs materially from the actual functioning as a result of such bug, defect or error;
- (f) a person other than an intended counterparty participating in the Adoption Procedures or obtaining the Purchase Amount Tokens or the Certificate Token(s) in a manner that enables them to participate in the transactions contemplated by this Agreement, including by *misappropriating* the secret referred to in Section 5.2(a)(iii), impersonating an intended counterparty or otherwise providing false information during the Adoption Procedures, or depositing Blockchain Tokens into the Round Manager Smart Contract ahead of an intended counterparty;
- (g) such Designated Smart Contract or any of the Blockchain Tokens controlled by such Designated Smart Contract becomes subject to an Order or applicable Legal Requirement that permanently or temporarily prohibits or restrains such Designated Smart Contract (or that, if such Designated Smart Contract were a person, would prohibit or restrain such *Designated* Smart Contract) from executing any function or operation it would otherwise reasonably be expected to execute or permanently or temporarily orders or directs such Designated Smart Contract (or that, if such Designated Smart Contract were a person, would order or direct such Designated Smart Contract) to take an action or bring about a circumstance it would otherwise not reasonably be expected to take or bring about; or
- (h) either Party becomes subject to an Order or applicable Legal Requirement requiring such Party to cause such Designated Smart Contract to take or refrain from taking any action or requiring such Party to take or refrain from taking any action with respect to any of the Blockchain Tokens of such Party that are subject to this Agreement, in each case, which it is not within the power of such Party to comply with in light of the nature of the Designated Smart Contracts; *provided, however*, that to trigger this clause ‘(g)’ pursuant to an applicable Legal Requirement, a Party must obtain, and share with the other Party, from a reputable law firm of 15 lawyers or more in the jurisdiction of the relevant Legal Requirement a written legal opinion to the effect that both: (i) such Legal Requirement applies; and (ii) such Legal Requirement requires the specified action or inaction.

### 3.2 Handling of Material Adverse Exception Events.

- (a) *Exception Notice.* If either Party becomes aware that there is a Material Adverse Exception Event, such Party (the “**Sending Party**”) shall deliver or cause to be delivered to the other Party (the “**Receiving Party**”) a written notice (an “**Exception Notice**”):
  - (i) certifying that the Sending Party believes in good faith that there is or has been a Material Adverse Exception Event;
  - (ii) describing in reasonable detail the events, facts, circumstances and reasons forming the

basis of such belief;

- (iii) if so desired by the Sending Party, describing in reasonable detail a proposal by the Sending Party of the actions to be taken, the agreements to be entered into, and the remedies to be sought by the Parties in response to the Material Adverse Exception Event an “*Exception Handling Proposal*”; and
  - (iv) including copies of any written evidence or other material written information, and summaries of any other evidence, relevant to, and material for the consideration of, the Material Adverse Exception Event and the other matters referred to in the Exception Notice.
- (b) *Exception Standstill*. During the period starting on the date of delivery of an Exception Notice and ending at the time an Exception Handling Determination is made (the “*Standstill Period*”), the Parties shall: (i) safeguard, set aside and hold in trust for the Parties any Blockchain Tokens that may have been received as a result of the Material Adverse Exception Event as described in the Exception Notice; and (ii) refrain from using the Deal Management Technologies in a manner that would reasonably be expected to be affected by, or would further the effects of or fail to mitigate the damages caused by, the Material Adverse Exception Event as described in the Exception Notice.
- (c) *Determination of Exception Handling*. The term “*Exception Handling Determination*” means a determination by either: (i) mutual written consent signed by the Parties; or (ii) the final resolution of a Dispute in accordance with Section 4.2, as to: (A) the existence or non-existence of a Material Adverse Exception Event and (B) if a Material Adverse Exception Event has been determined to exist, the actions to be taken, the agreements to be entered into, and the remedies to be sought in response thereto. Each of the Parties shall act in accordance with the Exception Handling Determination. If any amendment to this Agreement is required by the Exception Handling Determination, the Parties shall promptly engage legal counsel to draft such amendment for execution by the Parties.

**3.3** Key Management. Each Party is responsible for maintaining access to and securing against access by third parties any ‘wallet’ or private keys to be used by such Party in connection with this Agreement and the transactions contemplated thereby, including the use of such private keys to sign this Agreement and to execute transactions on the applicable Deal Management Technologies as may be required under this Agreement. Each Party assumes all risk of loss of access to or theft, misappropriation, unauthorized access or other exploitation of the foregoing by third parties. Each Party hereby acknowledges and accepts that if the foregoing occurs, the Security(ies) Purchase may nevertheless be executed and such Party may nevertheless receive Blockchain Tokens at the address controlled by such private keys and be unable to transact in such Blockchain Tokens or may have such Blockchain Tokens misappropriated, or may otherwise suffer damages in connection with this Agreement and the transactions contemplated hereby, and each Party hereby assumes all such risks and waives and releases all rights and remedies against the other Party, and MetaLeX, that may otherwise exist in connection with such losses.

#### 4. Miscellaneous

**4.1** Governing Law. This Agreement shall be governed by and construed under the internal laws of the Governing Jurisdiction, regardless of the laws that might otherwise govern under applicable principles of conflicts of laws.

- 4.2** Dispute Resolution. All Disputes shall be resolved in accordance with the Dispute Resolution Method.
- 4.3** Notices. All notices and other communications required or permitted pursuant to this Agreement shall be in writing and shall be deemed effectively given upon the earlier of: (i) personal delivery to the Party to be notified; or (ii) on the third business day after being sent, if sent in accordance with the **contactDetails** (set during the Adoption Procedures) of the Party to be notified and the sending party preserves clear and convincing evidence (such as a certified mail receipts, if the **contactDetails** included a physical mailing address that was used for the notice, or such as timestamped data records if the **contactDetails** included an email or digital messaging address that was used for the notice).
- 4.4** Amendment; Waiver. This Agreement may be amended and provisions may be waived (either generally or in a particular instance and either retroactively or prospectively), only with the written consent of both of the Parties, including as stated in Section 3.2(c) herein. No waiver of any provision hereunder shall be deemed a waiver of any subsequent breach or default of the same or any other provision of this Agreement, unless so stated in writing by the waiving Party.
- 4.5** Severability. Any term or provision of this Agreement that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the parties hereto agree that the court making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Agreement shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, the parties hereto agree to replace such invalid or unenforceable term or provision with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.
- 4.6** Entire Agreement. This Agreement, together with the other written agreements expressly referred to herein (including the Security(ies)) constitutes the entire agreement and understanding of the parties with respect to the subject matter hereof, and supersedes any and all prior negotiations, correspondence, representations, warranties, agreements, understandings, duties or obligations between or involving the parties with respect to the subject matter hereof.
- 4.7** Further Assurances. At any time or from time to time after the Security(ies) Purchase, the parties shall cooperate with one another, and, at the other's request, each party shall execute and deliver any further instruments or documents and take all such further actions as such other Party may reasonably request in order to carry out the intent of this Agreement.
- 4.8** Delays or Omissions. No delay or omission to exercise any right, power, or remedy accruing to any party under this Agreement, upon any breach or default of any other party under this Agreement, shall impair any such right, power, or remedy of such non-breaching or non-defaulting party, nor shall it be construed to be a waiver of or acquiescence to any such breach or default, or to any similar breach or default thereafter occurring, nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring. Any waiver, permit, consent or approval of any kind or character on the part of any party of any breach

or default under this Agreement, or any waiver on the part of any party of any provisions or conditions of this Agreement, must be in writing and shall be effective only to the extent specifically set forth in such writing. All remedies, whether under this Agreement or by law or otherwise afforded to any party, shall be cumulative and not alternative.

**4.9** Signature; Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including Blockchain Systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any electronic signature laws of the Governing Jurisdiction.

**4.10** Successors and Assigns. The terms and conditions of this Agreement shall inure to the benefit of and be binding upon the respective successors and assigns of the parties hereto and express beneficiaries hereof. MetaLeX shall be a third-party beneficiary of the provisions of this Agreement that relate to MetaLeX, including the representations and warranties set forth in Section 2 and the provisions of Section 3 and Exhibit D.

**4.11** Rules of Construction.

- (a) *Gender; Etc.* For purposes of this Agreement, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.
- (b) *Ambiguities.* The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting Party shall not be applied in the construction or interpretation of this Agreement.
- (c) *No Limitation.* As used in this Agreement, the words “include,” “including,” “such as” and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words “without limitation.” The word “or” shall mean the ‘non-exclusive’ “or” (e.g., if x and y are propositions, then “x or y is true” will be true where x is true but y is false, y is true but x is false, and both x and y are true).
- (d) *References.* Except as otherwise indicated, all references in this Agreement to “Sections,” “Schedules” and “Exhibits” are intended to refer to Sections of this Agreement and Schedules and Exhibits to this Agreement.
- (e) *Hereof.* The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to this Agreement as a whole and not to any particular provision of this Agreement.
- (f) *Captions/Headings.* The captions, headings and similar labels contained in this Agreement are for convenience of reference only, shall not be deemed to be a part of this Agreement and shall not be referred to in connection with the construction or interpretation of this Agreement.
- (g) *person.* The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

- (h) *Blockchain Finalization.* Wherever this Agreement calls for a certain action to be completed on the Designated Blockchain System, such action must be “Finalized” to have the intended legal effect hereunder. “*Finalization*” or “*Finalized*” means, with respect to a transaction, operation or state on a Designated Blockchain System, that: (a) such transaction, operation or state (or the results or record thereof, which may include state roots or calldata committed to Ethereum or another “layer-1/L1” Blockchain System by a “layer-2/L2” Blockchain System) has been recorded in a block of the Designated Blockchain System (and, if such Designated Blockchain System is a “layer-2/L2” Blockchain System, has additionally been committed to Ethereum or another applicable “layer-1/L1” Blockchain System); and (b) with respect to blocks on Ethereum, such block has been fully finalized in accordance with the checkpoint finalization algorithm of Ethereum.
- (i) *Smart Contract Deposits.* References to depositing assets into or with or inside a Smart Contract or assets being held by a Smart Contract refer to the Parties directly or indirectly effecting transactions on a Blockchain System such that the Smart Contract in question has certain controls over the relevant asset (e.g. that transfers of such assets can then be effected by calling certain functions on such Smart Contract).
- (j) *Decimal Precision and Truncation.* All token values in the smart contracts referred to herein are represented as uint256 integers with 18-decimal-place precision ( $10^{18}$ ). Percentages, multipliers and rates are stored with 4-decimal-place precision ( $10^4$ ). Precision of mathematic operations will be normalized to 18 decimals of precisions ( $10^{18}$ ) and any operations exceeding that will be truncated.

## 5. Defined Terms

**5.1** “*Adoption Procedures*” means that this Agreement has been entered into by or on behalf of the Parties, as follows:

- (a) the Company, by calling or causing to be called the `allocate()` function of the Round Manager Smart Contract with reference to the Agreement Template, has created or caused to be created a data structure representing and setting forth the details of this Agreement (the “*Registered Deal Data*”) in the Agreement Registry Smart Contract, and the Agreement Registry Smart Contract has stored a unique agreementId associated with that data structure (such uniquely identifiable data structure, the “*Registered Deal*”);
- (b) the Company has electronically signed this Agreement with the Company’s private key by calling or causing to be called the `signContractWithEscrow()` function of the Round Manager Smart Contract with reference to the Agreement Template, Registered Deal, and Registered Deal Data;
- (c) the Investor, by calling or causing to be called the `submitEOI()` function of the Round Manager Smart Contract and has added or cause to be added to the Registered Deal Data any necessary details regarding the Investor that are required by the Agreement Template that were not previously supplied by the Company; and
- (d) the Investor has electronically signed this Agreement with the Investor’s private key by calling or causing to be called the `signContractFor()` function of the Round Manager Smart Contract with reference to the Agreement Template, Registered Deal, and Registered Deal Data.

**5.2** The “*Registered Deal Data*” means the specific data used to parameterize the Agreement Template and must include at least the following information:

- (a) as the `globalValues` variable of the Registered Deal, a data structure setting forth the following data, which shall correspond to the data fields specified in the `globalFields` variable of the Agreement Template:
  - (i) the amount of U.S. dollar equivalents (e.g., units of USDC or another stablecoin) being paid to purchase each Security;
  - (ii) the amount of U.S. dollars intended to serve as the valuation of the Company for determining conversion of the Security(ies);
  - (iii) optionally, a secret `bytes32` variable set by the Company in order to restrict who may sign this Agreement as an Investor;
  - (iv) the name of the jurisdiction whose law will govern this Agreement (the “*Governing Jurisdiction*”), as the `governingLaw` string variable;
  - (v) the string “`bindingArbitration`,” the string “`courtResolution`” or another string specifying an alternative dispute resolution, as the `disputeResolutionMethod` string variable;
- (b) as the `partyValues` variables of the Registered Deal, data structures setting forth the following data about the Parties, which shall correspond to the applicable data fields specified in the `partyFields` variable of the Agreement Template:
  - (i) a blockchain address of the Company (the “*Company Blockchain Address*”), the legal name of the Company, details of where the Company can be contacted for purposes of giving notices under this Agreement, the entity type of the Company, the jurisdiction of incorporation of the Company, and
  - (ii) a blockchain address of the Investor (the “*Investor Blockchain Address*”), the legal name of the Investor, details of where the Investor can be contacted for purposes of giving notices under this Agreement, and, if the Investor is an entity, the entity type of the Investor and the jurisdiction of incorporation of the Investor;
  - (iii) the `contactDetails` setting forth electronic or mailing addresses for the Company and the Investor for purposes of receiving legal notices.
- (c) the Certificate Token(s) and the Purchase Amount Tokens have both been deposited into the Round Manager Smart Contract.

**5.3** “*Agreement Registry Smart Contract*” means the official MetaLeX deployment of `CyberAgreementRegistry.sol` on the Designated Blockchain System, being the Smart Contract at address `0xa9E808B8eCBB60Bb19abF026B5b863215BC4c134` on the Designated Blockchain System.

**5.4** “*Agreement Template*” means a data structure stored in the Agreement Registry Smart Contract

setting forth (as its `legalContractUri` string variable) an IPFS URI of this Agreement (the “*Legal Template*”), a template ID for unique identification of the Legal Template, and (as its `globalFields` variable and `partyFields` variables) a specification of the types of data (such as party names) needed to fill in the details of the Legal Template in order to create a legal agreement between particular parties.

**5.5** “*Blockchain*” means a distributed data structure consisting of hashlinked sets (‘blocks’) of transactions that is directly or indirectly produced, maintained and/or secured by the automated consensus of a network of independent nodes operating a byzantine-fault-tolerant protocol.

**5.6** “*Blockchain System*” means the combination of:

- (a) a Blockchain; and
- (b) a network of one or more devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to or otherwise maintain, validate, read *from*, store data with respect to, create public proofs with respect to, or write to such Blockchain.

**5.7** “*Blockchain Tokens*” means any virtual currency, token, or other unit of account or medium of exchange that is implemented exclusively or primarily on a Blockchain System, regardless of whether transferable, non-transferable, fungible or non-fungible.

**5.8** “*Consensus Attack*” means an attack that: (A) is undertaken by or on behalf of a person or group that controls a preponderance of the means of block production on the Designated Blockchain System or Ethereum; and (B) has the actual or intended effect of: (1) reversing any transaction made to or by any Designated Smart Contract, including any “double spend” attack having or intended to have such effect; or (2) preventing inclusion in blocks or Confirmation of any transaction made to or by any Designated Smart Contract, including any “censorship attack,” “transaction withholding attack” or “block withholding attack” having or intended to have such effect.

**5.9** “*Designated Blockchain System*” means the Blockchain System selected by the Parties for executing and performing this Agreement and the Security(ies) Purchase. Such Blockchain System shall include the relevant Round Manager Smart Contract selected by the Parties for this Agreement and the Security(ies) Purchase, and may be Ethereum or an Ethereum “layer-2”/“L2” such as Arbitrum, Base, Optimism, or ZKsync.

**5.10** “*Designated Smart Contracts*” means the Round Manager Smart Contract, Agreement Registry Smart Contract and any other Smart Contracts constituting an instance of all or any portion of the MetaLeX Protocol that are used in connection with the execution, delivery, or performance of this Agreement or the transactions contemplated by this Agreement.

**5.11** “*Dispute*” means any dispute, suit, action or other Legal Proceeding arising out of or based upon this Agreement or the matters contemplated by this Agreement.

**5.12** “*Dispute Resolution Method*” means:

- (a) if the value of the `disputeResolutionMethod` variable referred to in [Section 5.2\(a\)\(v\)](#) is “`bindingArbitration`”, the dispute resolution procedures set forth on [Exhibit B](#);

- (b) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) is “`courtResolution`”, the dispute resolution procedures set forth on Exhibit C; and
  - (c) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) sets forth or refers to another dispute resolution procedure, such other dispute resolution procedure.
- 5.13** “*Ethereum*” means, at any time, the canonical Blockchain System of the Ethereum Mainnet ‘mainnet’, as recognized by at least a majority of the validators running correct versions of the go-Ethereum client (‘geth’) then being operated in good faith in the ordinary course of the network.
- 5.14** “*Legal Proceeding*” means any private or governmental action, suit, litigation, arbitration, claim, proceeding (including any civil, criminal, administrative, investigative or appellate proceeding), hearing, inquiry, audit, examination or investigation commenced, brought, conducted or heard by or before, or otherwise involving, any court or other governmental entity or any arbitrator or arbitration panel.
- 5.15** “*Legal Requirement*” means any federal, state, local, municipal, foreign or other law, statute, legislation, constitution, principle of common law, resolution, ordinance, code, edict, decree, proclamation, treaty, convention, rule, regulation, ruling, directive, pronouncement, requirement, specification, determination, decision, opinion or interpretation issued, enacted, adopted, passed, approved, promulgated, made, implemented or otherwise put into effect by or under the authority of any governmental body.
- 5.16** “*MetaLeX*” means MetaLeX Labs, Inc., a Delaware corporation.
- 5.17** “*MetaLeX Protocol*” means the Smart Contract and Blockchain Systems source code at <https://github.com/MetaLex-Tech> and its repositories.
- 5.18** “*MetaLeX Web App*” means <https://www.metalex.tech/>, <https://www.app.metalex.tech/> and all subpages.
- 5.19** “*MetaLeX Web App Terms of Service*” means the most current version of the terms of service of the MetaLeX Web App, typically published at <https://github.com/MetaLex-Tech/publicDocs/tree/main/MetaLeX%20Legal%20Docs> as well as on the MetaLeX Web App.
- 5.20** “*Order*” means any restraining order, preliminary or permanent injunction, stay or other order, writ, injunction, judgment or decree that either: (a) is issued by a court of competent jurisdiction, or (b) arises by operation of applicable law as if issued by a court of competent jurisdiction, including, in the case of clause ‘(b)’ an automatic stay imposed by applicable law upon the filing of a petition for bankruptcy.
- 5.21** “*Parties*” means the Company and the Investor.
- 5.22** “*Round Manager Smart Contract*” means the instance of `RoundManager.sol` deployed by or on behalf of the Company.
- 5.23** “*Security(ies) Purchase*” has the meaning set forth in Section 1.1.
- 5.24** “*Smart Contract*” means any executable bytecode (commonly known as ‘smart contracts’)

deployed to a Blockchain System for operation by node operators running validators, sequencers or similar network operators on such Blockchain System.

**EXHIBIT A**

**SECURITIES BEING SOLD**

- The Simple Agreement for Future Tokens (SAFT) set forth as an Exhibit hereto.

## **EXHIBIT B**

### **BINDING CONFIDENTIAL ARBITRATION**

- (a) To the extent that, notwithstanding clause ‘(c)’ of this Exhibit B, the use of courts of law or equity is required (e.g., to enforce an arbitral award), the Parties hereby (i) irrevocably and unconditionally submit to the jurisdiction of the relevant courts of the Governing Jurisdiction for the purpose of any Dispute, (ii) agree not to commence any suit, action or other proceeding arising in connection with or based upon this Agreement or the matters contemplated by this Agreement except before the above-referenced courts, and (iii) waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any such suit, action or proceeding, any claim that it is not subject personally to the jurisdiction of the above-referenced courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that this Agreement or the subject matter hereof or thereof may not be enforced in or by such court.
- (b) Each Party will bear its own costs in respect of any Disputes.
- (c) Unless otherwise agreed in a written agreement signed by both Parties, all Disputes shall be resolved by confidential, binding arbitration to be seated in the Governing Jurisdiction and conducted in the English language by a panel of three arbitrators pursuant to the rules of the International Chamber of Commerce (the “**Rules**”). The arbitrators shall be appointed in accordance with the procedures set out in the Rules. The award or decision of a majority of the arbitrators shall be final and binding upon the Parties and the Parties expressly waive any right under the laws of any jurisdiction to appeal or otherwise challenge the award, ruling or decision of such majority. The judgment of any award or decision may be entered in any court having competent jurisdiction to the extent deemed reasonably necessary by the Party prevailing in the Arbitration, and the prevailing Party shall have all rights of a judgment creditor as to such Arbitration award in such jurisdiction. Except as provided in the preceding sentence, no Party shall (or shall permit its representatives to) commence, continue or pursue any Dispute in any court; provided, however, that each Party shall be entitled to seek (in accordance with clause ‘(a)’ of this Exhibit B) a preliminary injunction, temporary restraining order or similar provisional relief to prevent threatened or ongoing breaches of this Agreement or to provisionally enforce specifically the terms and provisions of this Agreement, this being in addition to any other remedy to which each Party is entitled at law or in equity.
- (d) EACH PARTY HEREBY WAIVES ITS RIGHTS TO A JURY TRIAL OF ANY CLAIM OR CAUSE OF ACTION BASED UPON OR ARISING OUT OF THIS AGREEMENT OR THE SUBJECT MATTER HEREOF. THE SCOPE OF THIS WAIVER IS INTENDED TO BE ALL-ENCOMPASSING OF ANY AND ALL DISPUTES THAT MAY BE FILED IN ANY COURT AND THAT RELATE TO THE SUBJECT MATTER OF ANY OF THE TRANSACTIONS CONTEMPLATED BY THIS AGREEMENT, INCLUDING, WITHOUT LIMITATION, CONTRACT CLAIMS, TORT CLAIMS (INCLUDING NEGLIGENCE), BREACH OF DUTY CLAIMS, AND ALL OTHER COMMON LAW AND STATUTORY CLAIMS. THIS SECTION HAS BEEN FULLY DISCUSSED BY EACH OF THE PARTIES HERETO AND THESE PROVISIONS WILL NOT BE SUBJECT TO ANY EXCEPTIONS. EACH PARTY HERETO HEREBY FURTHER WARRANTS AND REPRESENTS THAT SUCH PARTY HAS REVIEWED THIS WAIVER WITH ITS LEGAL COUNSEL, AND THAT SUCH PARTY KNOWINGLY AND VOLUNTARILY WAIVES ITS JURY TRIAL RIGHTS FOLLOWING CONSULTATION WITH LEGAL COUNSEL.

## **EXHIBIT C**

### **COURT ADJUDICATION**

The Parties hereby (i) irrevocably and unconditionally submit to the jurisdiction of the relevant courts of the Governing Jurisdiction for the purpose of any Dispute, (ii) agree not to commence any suit, action or other proceeding arising in connection with or based upon this Agreement or the matters contemplated by this Agreement except before the above-referenced courts, and (iii) waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any such suit, action or proceeding, any claim that it is not subject personally to the jurisdiction of the above-referenced courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that this Agreement or the subject matter hereof or thereof may not be enforced in or by such court.

## **EXHIBIT D**

### **METALEX TERMS, LICENSE, DISCLAIMERS**

This legal template and all associated applications, Smart Contracts (including the Designated Smart Contracts), and software code (including the MetaLeX Protocol) and all the other Deal Management Technology (collectively, the “*MetaLeX Intellectual Property*”) are, unless otherwise indicated, the sole intellectual property of MetaLeX and are delivered on an as-is, where-is basis, without representation, warranty, guarantee, assurances or advice of any kind, except as otherwise set forth herein. Except as otherwise provided herein, in the MetaLeX Web App Terms of Service, or at <https://github.com/MetaLex-Tech/>, no licenses are granted with respect to any MetaLeX Intellectual Property. Subject to your compliance with the foregoing and all other applicable terms and policies, MetaLeX hereby grants you a limited, non-exclusive, non-sublicensable, non-transferable, non-assignable license to use, access, and integrate with this Agreement, the Agreement Template, and the Designated Smart Contracts, solely through the MetaLeX Web App and only in compliance with all applicable terms and policies. Except as expressly licensed herein, in the MetaLeX Web App Terms of Service, or at <https://github.com/MetaLex-Tech/>, you must not use, access, integrate with, modify, translate, create derivative works of, reverse engineer, or otherwise exploit any MetaLeX Intellectual Property. MetaLeX reserves all rights, title, and interest (including the right to enforce any such rights) not expressly granted herein, in the MetaLeX Web App Terms of Service, or at <https://github.com/MetaLex-Tech/>.

Though the Company and each other securities issuer issuing and managing securities through the MetaLeX Intellectual Property is the sole holder of all administrative, managerial and operational authorities with respect to the relevant Smart Contracts used by the Company or that other particular issuer, the MetaLeX Intellectual Property is currently in beta and MetaLeX retains unilateral upgrade authority over certain Smart Contracts to keep them up to date with changes to the MetaLeX Smart Contract protocol. MetaLeX will not utilize such upgrade authority for the purpose of assisting a particular issuer with its administration of its relationship with its securities holders, but solely for general protocol upgrades or to handle protocol-wide security emergencies during beta testing. The sole method of opting-out of MetaLeX-imposed upgrades to the relevant Smart Contracts with respect to an already issued Certificate Token will be by the Company or other relevant securities issuer voiding the relevant Certificate Token and separately issuing its own Blockchain Token representing the Security(ies) or changing to a book-entry system of tracking Security(ies) ownership, which the Company may do at any time in its sole discretion.

MetaLeX makes no representations, warranties, guarantees, or assurances regarding the quality or sufficiency of the MetaLeX Intellectual Property, the Deal Management Technologies, or the MetaLeX Web App or any other application or software, or their compliance with any law in any jurisdiction. The Parties are solely responsible for determining the quality, fitness for purpose, and lawfulness of the foregoing for any particular purpose in any jurisdiction.

This Agreement and the Deal Management Technologies are provided as templates only and do not constitute financial, investment, or other professional advice. MetaLeX does not endorse or recommend any specific investment strategy or the exchange of any particular Blockchain Tokens. The Parties are advised to consult with financial advisors, investment professionals, or other experts to assess the financial implications and risks of engaging in token exchanges or any related activities. MetaLeX disclaims any liability for financial decisions made based on the use or interpretation of this Agreement or any of the Deal Management Technologies.

MetaLeX does not assume responsibility for the contents of, or the consequence of using the MetaLeX Intellectual Property or any Blockchain System or Smart Contracts. MetaLeX does not owe you any attorney-client confidentiality, privilege, fiduciary, or other duties. Before using any of these forms, you should

consider consulting with a lawyer licensed in the relevant jurisdiction(s).

The MetaLeX Web Application provides a non-exclusive graphical user interface to assist the Parties with configuring, deploying and using the relevant Smart Contracts and entering into and performing their respective obligations under this Agreement (*see* 'Adoption Procedures' above). Certain details (such as selection of the relevant Agreement Template associated with this Agreement) are pre-configured on the MetaLeX Web Application for convenience of the Parties and represent MetaLeX's opinions of many users' likely preferences, notwithstanding that other configurations of the Smart Contracts are possible. **Please review all fields in the MetaLeX Web Application carefully to ensure you wish to agree to them, including the pre-filled fields.** The terms and conditions of the MetaLeX Web Application are provided separately on the MetaLeX Web Application itself and apply in addition to these Terms, License and Disclaimers.

Each Party acknowledges and agrees:

- (a) it had sufficient opportunity to review the source code of each Designated Smart Contracts and any applicable parameters, dependencies, oracles, interfaces, and other software and materials relevant thereto (the "***Source Code***");
- (b) it is sufficiently sophisticated in understanding the Source Code and the relevant technology generally or has consulted with a third party with such sufficient technical sophistication; and
- (c) it understands the functionality, limitations, and risks of the Source Code for its intended uses and compliance with this Agreement, and that it is entering into this Agreement with full knowledge and acknowledgment thereof.

**EXHIBIT E**  
**FORM OF SAFT**

THIS SAFT AND THE CERTIFICATE TOKEN MAY BE SUBJECT TO ANY OR ALL OF THE RESTRICTIVE LEGENDS SET FORTH AT THE END OF THIS SAFT. PLEASE CHECK THE “LEGENDS” METADATA FIELD OF THE CERTIFICATE TOKEN FOR THE CURRENTLY APPLICABLE RESTRICTIVE LEGENDS.

### SAFT (Simple Agreement for Future Tokens)

THIS CERTIFIES THAT in exchange for the payment by the Investor of the Purchase Amount pursuant to a Cyber-Securities Purchase Agreement entered into by the Investor and the Company (the “*Purchase Agreement*”), the Company issues to the Investor the right to certain Protocol Tokens to be issued by the Token Issuer, on the terms set forth in this Simple Agreement for Future Tokens (this “*SAFT*”).

This SAFT is a certificated security (as defined in the Uniform Commercial Code (UCC) § 8-102(a)(4)) represented by a non-fungible blockchain token issued by the Company (the “*Certificate Token*”). The Certificate Token is intended to function as a security certificate (as defined in UCC §8-102(a)(16)) representing this SAFT.

The Certificate Token was issued by the Company’s instance of the MetaLeX certificated security token protocol at <https://github.com/MetaLex-Tech/cybercorps-contracts/>, including an instance of `CyberCertPrinter.sol` (such instance, the “*CyberCertPrinter Smart Contract*”). Specific details of this SAFT are stored in a mapping of the `CertificateDetails` struct to the `tokenId` of the Certificate Token in the memory of the CyberCertPrinter Smart Contract (the “*Mapping*”), including the following details providing the meanings of certain capitalized terms herein:

“*Company*” means the entity identified by the values of the `cyberCORPName`, `cyberCORPJurisdiction`, and `cyberCORPType` variables stored in the Mapping.

“*Company Address*” means the mailing and/or electronic address stored in the value of the `contactDetails` variable stored in the value of the `companyDetails` variable stored in the Mapping.

“*Governing Jurisdiction*” means the jurisdiction identified by the value of the `governingJurisdiction` variable stored in the `legalDetails` variable stored in the Mapping.

“*Investor*” means the individual or entity identified by the value of the `investorName` variable stored in the Mapping, and, if an entity, the values of the `investorType` and `investorJurisdiction` variables stored in the Mapping.

“*Investor Address*” means the mailing and/or electronic address stored in the value of the `contactDetails` variable stored in the value of the `investorDetails` variable stored in the Mapping.

“*Protocol Valuation Cap*” means an amount of U.S. dollars equal to the value of the `issuerUSDValuationAtTimeofInvestment` variable stored in the Mapping.

“*Purchase Amount*” means an amount of U.S. dollars equal to the value of the `investmentAmountUSD` variable stored in the Mapping.

“*Unlocking Cliff Percentage*” means the percentage of the Investor Tokens that unlock (i.e., cease to be Transfer-restricted under Section 3) at the Unlocking Cliff, identified by the value of the `unlockingCliffPercentage` variable stored in the Mapping.

“*Unlocking Cliff Period*” means the number of time units of the Unlocking Interval Type from and after the Unlocking Start Time after which some number of Tokens first become unlocked (i.e., cease to be Transfer-restricted under Section 3), identified by the value of the `unlockingCliffPeriod` variable stored in the Mapping.

“*Unlocking Interval Type*” means the type of time interval defining each Token unlocking event (i.e., event of ceasing to be Transfer-restricted under Section 3) within the Unlocking Period, identified by the value of the

**UnlockingIntervalType** variable stored in the Mapping, which value may be **secondly** (i.e., each second), **hourly**, **daily**, **monthly**, or **blockly** (i.e., a Token unlock occurs once in each block of the applicable blockchain system).

“**Unlocking Period**” means the number of time units of the Unlocking Interval Type from and after the Unlocking Start Time required for all of the Investor Tokens to become fully unlocked (i.e., ceasing to be Transfer-restricted under Section 3), identified by the value of the **unlockingPeriod** variable stored in the Mapping.

“**Unlocking Start Time**” means the starting time from which the unlock period of the Tokens (i.e., the period of time over which Transfer restrictions under Section 3 lapse) is calculated, identified by the value of the **unlockStartTimeType** variable stored in the Mapping (**agreementExecutionTime** for the time that this SAFT is entered into, **tgeTime** for the time of the Token Launch Event, or **setTime** for a particular specified time) and the value of the **unlockStartTime** variable stored in the Mapping.

See Section 2 for certain additional defined terms.

The Company has certain administrative controls over the Certificate Token, including controls over the transferability of the Certificate Token and the power to set the status of the Certificate Token to “void” for any reason or no reason, in its sole discretion. In the event that the Company sets the status of the Certificate Token to “void” the Company will either issue the Investor a new Certificate Token or a paper certificate representing this SAFT, or will provide for representation of this SAFT in book-entry form on the books and records of the Company. In the event of a persistent “contentious hardfork” (as commonly understood in the blockchain industry) of any of the relevant blockchain systems that results in copies of the Certificate Token on each such blockchain system, the Company shall determine which copy of the Certificate Token is canonical in its sole and absolute discretion, and the Company may void, and shall not be required to honor any claims on, or afford any rights to, the copy of the Certificate Token determined by the Company to be non-canonical. In the event that the blockchain system determined by the Company to be canonical following a contentious hardfork itself subsequently undergoes its own contentious hardfork, this provision shall likewise apply to such contentious hardfork, *mutatis mutandis*.

## 1. Events

### 1.1 Token Launch Event.

- (a) If there is a Token Launch Event before the termination of this SAFT, this SAFT will automatically convert into the right of the Investor to receive from the Company or another Token Issuer, upon the terms and subject to the conditions set forth in this SAFT, a number of Protocol Tokens equal to the greater of: (i) the Purchase Amount divided by the lowest price per Protocol Token sold by the Company or another Token Issuer in a priced financing round prior to or in connection with the Token Launch Event; or (ii) the Purchase Amount divided by the SAFT Price. The Protocol Tokens to be received by the Investor hereunder are referred to herein as the “**Investor Tokens**”.
- (b) The Investor acknowledges and agrees that the use cases and other properties of the Protocol Tokens are still under development; accordingly, conversion of this instrument into Protocol Tokens may (at the election of the Company or another Token Issuer) require the Investor’s execution of certain additional agreements, which may include governance terms and conditions, transfer restrictions, use commitments and other matters, in each case, as reasonably determined by the Company in good faith to be necessary

- 1.2 Dissolution Event. If there is a Dissolution Event before the termination of this instrument, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1.3 below) to receive, out of the cash and other assets that are proceeds from the Dissolution Event and legally available for distribution, the Purchase Amount, due and payable to the Investor immediately prior to the consummation of the Dissolution Event. If immediately prior to the consummation of the Dissolution Event, the assets of the Company that remain legally available for distribution to the Investor and all holders of all other SAFTs (the “**Dissolving Investors**”), as determined in good faith by the Company’s board of directors, are insufficient to permit the payment to the Dissolving Investors of their respective purchase amounts under their respective SAFTs, then the remaining assets

of the Company legally available for distribution will be distributed in U.S. Dollars or dollar-equivalent stablecoins in accordance with Section 1.3 hereof.

- 1.3 Liquidation Priority. In a Dissolution Event, the Investor's right to receive its Purchase Amount shall be:
- (a) on par with payment of outstanding indebtedness and creditor claims, (including contractual claims for payment or other SAFTs); and
  - (b) senior to payments for the capital stock, membership interests, and other equity securities of the Company, as applicable.

If the applicable proceeds are insufficient to permit full payments to the Investor and such other holders of SAFTs and creditors of the Company, the applicable proceeds will be distributed pro rata to the Investor and the holders of such other SAFTs and/or other creditors in proportion to the full payments that would otherwise be due.

- 1.4 Termination. This SAFT will automatically terminate (without relieving any party of any obligations arising from a prior breach of or non-compliance with this instrument) immediately following the earliest to occur of (i) the completion of delivery of all Investor Tokens; or (ii) the payment, or setting aside for payment, of amounts due the Investor pursuant to Section 1.2. Terms of this SAFT which are by their nature intended to survive termination (including without limitation the Company's representations pursuant to Section 4) shall remain in force after termination.
- 1.5 Conditions. As a condition precedent to the issuance to the Investor of any Tokens pursuant to Section 1.1 or payments pursuant to Section 1.2, the representations and warranties of the Investor set forth in Section 5 must be true and correct in all material respects as of immediately prior to such issuance or payment, as the case may be. The Investor shall notify the Company in writing as promptly as practicable (and in any event prior to any such issuance) if the Investor becomes aware that any of the representations and warranties in Section 5 become inaccurate during the term of this SAFT.

## 2. Definitions

- 2.1 "**Affiliate**" means, with respect to any specified individual or entity, any other individual or entity that, directly or indirectly, controls, is controlled by, or is under common control with such individual or entity, including without limitation any general partner, managing member, officer, Founder, director or trustee of such individual or entity.
- 2.2 "**Allocable Protocol Tokens**" means the total maximum number of Protocol Tokens that have been, are or will be sold, used, transferred, awarded, granted distributed, created, generated, minted or otherwise come into existence, whether temporarily or permanently, by, at the direction of, on behalf of or with the affirmative participation, consent or approval of the Company or a Token Issuer. Without limiting the generality of the foregoing, "Allocable Protocol Tokens" shall exclude Protocol Tokens that meet any one or more of the following conditions:
- (a) such Protocol Tokens are Representational Protocol Tokens, are Collectible NFTs, were created for testing purposes only, or at the time of their creation could not reasonably be expected to have or acquire material value;
  - (b) such Protocol Tokens are in excess of the Initial Protocol Tokens and were created primarily as a result of an irregular state change, reorganization, fork, liveness failure, consensus failure or hack, attack or exploit of a Protocol Instance or blockchain system on which a Protocol Instance is deployed, provided that the foregoing was not initiated by, at the direction of, on behalf of or with the affirmative participation, consent or approval of the Company;
  - (c) such Protocol Tokens are primarily associated with a Third-Party Protocol Instance;

- (d) such Protocol Tokens are in excess of the Initial Protocol Tokens and were minted by, at the direction of or with the approval of a DAO comprising holders of Protocol Tokens (and not at the direction of the Company, Company Representatives, or a Token Issuer); or
- (e) it is beyond the commercially reasonable ability of the Company or a Token Issuer to stop such Protocol Tokens from being created or to obtain a portion of such Protocol Tokens which could be distributed to Investor.

For the avoidance of doubt, the Allocable Protocol Tokens shall initially be the maximum number of Protocol Tokens that, as of the Token Launch Event, exist or are expressly permitted by the applicable Protocol Instance to come into existence (the “**Initial Protocol Tokens**”).

- 2.3 “**Collectible NFTs**” means non-fungible tokens (and all associated metadata) having primarily artistic, souvenir or community-building purposes and not essential to the governance or use of the Protocol.
- 2.4 “**Company Representatives**” means the Company’s investors, stockholders, Founders, employees, officers, directors and advisors or other consultants.
- 2.5 “**Dissolution Event**” means (i) a voluntary termination of operations of the Company, (ii) a general assignment for the benefit of the Company’s creditors or (iii) any other liquidation, dissolution or winding up of the Company, whether voluntary or involuntary.
- 2.6 “**Founder**” means each employee, independent contractor, service provider, director, officer, or holder of equity securities of the Company or Token Issuer who: (a) made material contributions to the Company’s or a Token Issuer’s intellectual property (including business plans or strategies) or material business relationships; (b) receives or is entitled to receive at least five percent of the Allocable Protocol Tokens or 5% of the equity securities of the Company or a Token Issuer; and (c) has been identified as or would otherwise reasonably be considered to be a founder of the Company or a Token Issuer.
- 2.7 “**Insider**” means any current or former investors, stockholders, Founders, employees, officers, directors and advisors or other consultants of the Company and any Token Issuer (if other than the Company).
- 2.8 “**Majority-in-Interest**” means the investors under SAFTs having the same Protocol Valuation Cap whose SAFTs have a total purchase amount greater than 50% of the aggregate purchase amounts of all of such SAFTs.
- 2.9 “**Protocol**” means
  - (a) any protocol based on or embodying the distinctive ideas or mechanisms proposed or developed by the Company or any Token Issuer; and
  - (b) all protocols, software and technology based on, incorporating or derived in whole or in part from any protocol, software or technology described in the preceding clause ‘(a)’; and
  - (c) any blockchain-based network protocol, platform or application (including any blockchain-based network of smart contracts or smart contract participants) created, developed, operated or managed by, or based upon, or incorporating material portions of any intellectual property developed, owned or exclusively licensed by the Company or any Token Issuer.
- 2.10 “**Protocol Instance**” means:
  - (a) any implementation of the Protocol in software (whether in the form of source code, bytecode, machine code or otherwise); or
  - (b) any copy of an implementation referred to in the preceding clause ‘(a)’ that is associated with a unique network address and memory/storage state on a blockchain system or otherwise available for runtime operation on a blockchain system.

- 2.11 ***“Protocol Tokens”*** means all blockchain tokens that (i) would reasonably be expected to have material pecuniary value; and (ii) have or confer or are intended or generally understood to have or to confer any rights, powers or benefits that govern or control, or capture, track or correlate with the value or adoption of, any Protocol or Protocol Instance (other than solely a Third-Party Protocol Instance) or any funding, personnel or resources dedicated or reserved primarily for maintenance, development, marketing, operation or improvement of any Protocol or Protocol Instance (other than solely a Third-Party Protocol Instance) (including any Blockchain Tokens conferring any rights, powers or benefits with respect to a DAO for governing the Protocol or a Protocol Instance (other than a Third-Party Protocol Instance) or any similar entity, fund or set, group or association of persons).
- 2.12 ***“Representational Protocol Tokens”*** means any type of Protocol Token that:
- (a) without reduction or dilution of the value of or economic, governance or other powers and benefits of the type Protocol Tokens issued pursuant to this Agreement, is intrinsically derived from, designed to represent or be convertible with the type of Protocol Tokens issued pursuant to this Agreement;
  - (b) cannot be minted, generated, credited, assigned or otherwise come into existence without staking, converting, depositing, locking, burning or otherwise removing from circulation a proportional amount of the type of Protocol Tokens issued pursuant to this Agreement; and
  - (c) cannot remain in circulation except while the proportional amount referred to in the preceding clause ‘(b)’ remains out of circulation.
- 2.13 ***“SAFT”*** means a Simple Agreement for Future Tokens or other agreement between the Company and an investor providing the investor with the right to receive Protocol Tokens in exchange for a purchase price, in each case, that is entered into prior to the expiration or termination of this instrument.
- 2.14 ***“SAFT Price”*** means the price per Protocol Token equal to the Protocol Valuation Cap divided by the number of Allocable Protocol Tokens as of the time of the Token Launch Event.
- 2.15 ***“Third-Party Protocol Instance”*** means a Protocol Instance that:
- (a) insofar as it differs from other Protocol Instances, was not directly or indirectly developed or deployed by, on behalf of, at the direction of or with the affirmative participation, consent or approval of, or using any resources of, the Company or a Token Issuer; and
  - (b) is not directly or indirectly endorsed or supported by or on behalf of the Company.
- 2.16 ***“Token Launch Event”*** means the time that any Token Issuer first issues any Allocable Protocol Tokens to non-Insiders (other than any other Token Issuer).
- 2.17 ***“Token Issuer(s)”*** means (i) the Company, (ii) the Company’s present and future parent(s), subsidiaries and Affiliates, and their respective successors and assigns, (iii) any foundation, trust or similar entity that (x) has entered or will enter into a services contract, agreement, relationship, understanding or arrangement with the Company or an Affiliate of the Company to develop a blockchain protocol or smart contracts associated with the Tokens or (y) issues, distributes, creates, generates, mints, or produces Protocol Tokens and is related to, or formed by, the Company, or its present or future parent(s) or subsidiaries with respect to software code developed by the Company or any of the Company’s present and future Founders, parents, subsidiaries and Affiliates, and (iv) to the extent issuing Tokens materially related to the Company’s business, any current or future Company Representative or Affiliate thereof.
- 2.18 ***“Transfer”*** means (A) the direct or indirect sale, assignment, delegation, pledge, charge, lending, hypothecation, encumbrance, creation of a swap or other derivative with respect to, or transfer or disposition of this instrument, any Investor Token or any interest, right, claim, obligation or liability under this instrument or with respect to any Investor Token; or (B) the Investor entering into or becoming subject to a contract or agreement, written or oral, that would cause any of the foregoing to occur. Without limiting the generality of the foregoing, ***“Transfer”*** shall include entering into any short position, any “put equivalent position” or “call equivalent position”, option or

contract to sell or purchase, or swap or other arrangement that transfers to another, in whole or in part, any of the economic or other consequences of ownership of any Investor Tokens or this instrument, in each case, whether any such transaction is to be settled by delivery of such Investor Tokens, other virtual currencies or virtual mediums of exchange, in cash, or otherwise. Notwithstanding the foregoing, it shall not be deemed a “*Transfer*” of Investor Tokens for the Investor to stake Investor Tokens for the Investor’s own account in accordance with the mechanisms enabled by the Protocol (if any); *provided, however*, that any use of a staking services provider to assist with the foregoing must comply with all of the following conditions:

- (a) if the service provider will, at any time, have custody over or any power to effect or prevent transactions in any Investor Tokens (e.g., because the service provider holds one or more private keys associated with any public key address(es) of the Investor Tokens or has authority or power to call functions in a “smart contract” in which any Investor Tokens are held), such custody or power must be in the capacity of a fiduciary, trustee, escrow agent or bailment agent for the Investor and not that of a borrower, purchaser or counterparty to a futures or swap arrangement;
- (b) the service provider must be under contract with the Investor to return the Investor Tokens (other than any Investor Tokens lost due to “slashing penalties” incurred by the staking protocol) upon demand (except for any mandatory un-staking delays imposed by the staking protocol); and
- (c) if, pursuant to a “liquid staking” arrangement or otherwise, the service provider provides to or for the Investor or the Investor otherwise creates or receives any tokens, certificates of deposit or other derivatives or instruments representing the staked Investor Tokens, no Transfer is made of such tokens, certificates of deposits or other derivatives or instruments except to the extent that the corresponding Investor Tokens have become unlocked in accordance with the preceding clause ‘(b)’.

### 3. Lockup.

- 3.1 The Investor Tokens shall be subject to the restrictions on Transfer set forth in this Section 3 (the “*Transfer Restrictions*”). The Investor shall not, without the prior written consent of the Company, Transfer any Investor Token, except to the extent such Investor Token has become unlocked pursuant to Section 3.2 as modified by Section 3.3 and Section 3.4.
- 3.2 Subject to Section 3.3 and Section 3.4, the Investor Tokens shall become Transferable (“*unlock*”) ratably in accordance with the Unlocking Interval Type during the period beginning at the Unlocking Start Time and ending at the end of the Unlocking Period, except that: (a) such ratable unlocking shall be delayed from the Unlocking Start Time until the end of the Unlocking Cliff Period; and (b) the Unlocking Cliff Percentage of the Investor Tokens shall unlock at the end of the Unlocking Cliff Period.
- 3.3 Notwithstanding Section 3.2, but subject to Section 3.4:
  - (a) The Company may (but shall have no obligation to), in whole or in part, waive, shorten or terminate the Unlocking Period, accelerate the unlocking of Investor Tokens or reduce the Transfer restrictions applying during the Unlocking Period, provided that each such waiver, shortening, termination, acceleration or reduction applies on a pro rata, pari passu basis to all holders of SAFTs.
  - (b) The Company may extend the Unlocking Period or the Unlocking Cliff Period, or reduce the Unlocking Cliff Percentage, or modify the Unlocking Interval Type, in each case:
    - (i) (i) to the extent required by applicable law, as determined by the Board of Directors (or equivalent governing authority) of the Company in good faith and on the advice of external legal counsel; or
    - (ii) (ii) as approved by both the Company and the Majority-in-Interest.
- 3.4 Notwithstanding Section 3.2 and Section 3.3: (i) no Transfer Restrictions shall apply to Investor unless all Tokens that are issued (directly or indirectly) to any current or former investors, securities holders, Founders, employees,

officers, directors and advisors and other consultants of the Company and any Token Issuer are subject to the Transfer Restrictions at least as onerous as those applicable to the Investor; (ii) any discretionary waiver or termination of any Transfer restrictions that are approved by the Board of Directors (or equivalent governing authority) of the Company or any Token Issuer with respect to any Insider shall apply to each holder similar SAFTs or other rights to receive Allocable Protocol Tokens from the Company or another Token Issuer, pro rata, based on the number of Allocable Protocol Tokens such holder will be entitled to; and (iii) except to the extent prohibited by applicable law (determined in accordance with clause (a)(i) above), during any period any Investor Tokens are subject to Transfer Restrictions, each such holder may: (A) Transfer any Tokens to any Affiliate of such holder and (B) exercise the voting and other governance rights linked to such Tokens or deploy them towards staking in accordance with the governance and other rules of the Protocol.

- 3.5 If the Company or any Token Issuer determines that it is necessary or desirable to impose programmatic Transfer Restrictions on the Tokens, then the Company and the Majority-in-Interest shall work in good faith to identify a mutually agreed (such agreement not to be unreasonably conditioned, withheld or delayed) smart contract through which the Transfer Restrictions set forth in this Section 3 can be programmatically enforced, provided that such smart contract shall be immutable (or subject to mutual governance by the Company and Majority-in-Interest) and not be controlled by the Company, any Token Issuer or any Affiliate thereof and shall otherwise comply with the terms of this SAFT.
- 3.6 Any attempted or purported Transfer that would breach, violate or fail to comply with this Section 3 shall be null and void *ab initio*. Forfeiture and relinquishment of all Investor Tokens, and rights to Investor Tokens and other rights under this SAFT, shall be deemed liquidated damages for any attempted or actual breach of the Transfer Restrictions, and the Company or any Token Issuer may freeze, refuse to issue, blacklist under the relevant Protocol Instances, or otherwise seek to claim, reclaim, or limit the rights, benefits, or powers with respect to, such Investor Tokens without any consent of the Investor or court order.
- 3.7 For the avoidance of doubt, Tokens purchased after the Token Launch Event or received by Investor as a reward for staking Investor Tokens shall not be subject to the Transfer restrictions described in this Section 3.

**4. Company Representations.** The Company hereby represents and warrants, to and for the benefit of the Investor, as of the date of this instrument and as of each date on which this instrument is converted, expires or terminates, as applicable, as follows:

- 4.1 The Company is duly formed, validly existing and in good standing under the laws of its jurisdiction of formation, and has the power and authority to own, lease and operate its properties and carry on its business as now conducted.
- 4.2 The execution, delivery and performance by the Company of this instrument is within the power of the Company and has been duly authorized by all necessary actions on the part of the Company (subject to the exceptions set forth in Section 4.4). This SAFT constitutes a legal, valid and binding obligation of the Company, enforceable against the Company in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors' rights generally and general principles of equity. To its knowledge, the Company is not in violation of (i) its current certificate of incorporation and bylaws, memorandum and articles of association, operating agreement or equivalent governing documents; (ii) any material statute, rule or regulation applicable to the Company or (iii) any material debt or contract to which the Company is a party or by which it is bound, where, in each case, such violation or default, individually, or together with all such violations or defaults, could reasonably be expected to have a material adverse effect on the Company.
- 4.3 The performance and consummation of the transactions contemplated by this instrument do not and will not: (i) violate any material judgment, statute, rule or regulation applicable to the Company; (ii) result in the acceleration of any material debt or contract to which the Company is a party or by which it is bound; or (iii) result in the creation or imposition of any lien on any property, asset or revenue of the Company or the suspension, forfeiture, or nonrenewal of any material permit, license or authorization applicable to the Company, its business or operations.

- 4.4 No consents or approvals are required in connection with the performance of this instrument, other than: (i) the Company's board of director, manager or similar entity governance approvals or approvals of holders of equity securities (in each case, as applicable); and (ii) any qualifications or filings under applicable securities laws.
- 4.5 To its knowledge, the Company owns or possesses (or can obtain on commercially reasonable terms) sufficient legal rights to all patents, trademarks, service marks, trade names, copyrights, trade secrets, licenses, information, processes and other intellectual property rights necessary for its business as now conducted and as currently proposed to be conducted, without any conflict with, or infringement of the rights of, others.

**5. Investor Representations.** Investor hereby represents and warrants, to and for the benefit of the Company, as of the date of this instrument and as of each date on which this instrument is converted, expires or terminates, as applicable, as follows:

- 5.1 The Investor has full legal capacity, power and authority to execute and deliver this instrument and to perform its obligations hereunder. This instrument constitutes valid and binding obligation of the Investor, enforceable in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors' rights generally and general principles of equity.
- 5.2 The Investor is an accredited investor as defined in Rule 501(a) of Regulation D promulgated under the Securities Act of 1933, and all information and certifications set forth in the accredited investor questionnaire provided by the Investor to the Company are accurate and complete. The Investor is purchasing this instrument and acquiring the Protocol Tokens for its own account, not as a nominee or agent, and not with a view to, or for resale of this instrument or the Protocol Tokens in connection with, the distribution thereof, and the Investor has no present intention of selling, granting any participation in, or otherwise distributing any of the foregoing. The Investor has been advised that this instrument is a security and that the offers and sales of this instrument have not been registered under any country's securities laws and, therefore, cannot be resold except in compliance with the applicable country's laws. If the Protocol Tokens or subsequent sales of the Protocol Tokens are deemed to be or to represent securities, then, since the Protocol Tokens have not been registered under any country's securities laws and, the Protocol Tokens will not be permitted to be resold except in compliance with registration or exemption requirements under the applicable securities laws. The Investor understands that this instrument is and any Protocol Tokens may be a "restricted security" under applicable U.S. federal and state securities laws and that, pursuant to these laws, the Investor must hold this instrument (and, if securities laws apply to the Protocol Tokens, the Protocol Tokens) indefinitely unless this instrument or the Protocol Tokens, as the case may be are registered with the Securities and Exchange Commission and qualified by state authorities, or an exemption from such registration and qualification requirements is available. The Investor acknowledges and agrees that the Company has no obligation to register or qualify for resale this instrument (or the Protocol Tokens). The Investor further acknowledges that if an exemption from registration is available, it may be conditioned on various requirements including, but not limited to, the time and manner of sale, the holding period, and on requirements relating to the Company which are outside of the Investor's control, and which the Company is under no obligation and may not be able to satisfy. The restrictions on Transfer described in this [Section 5.2](#) are in addition to, and may last longer than, the Unlocking Period restrictions set forth in [Section 3.1](#). The Investor understands that no public market now exists for this instrument (or the Protocol Tokens), and that the Company has made no assurances that a public market will ever exist for this instrument (or the Protocol Tokens). If the Investor is an entity, the Investor has not been formed for the specific purpose of acquiring this instrument or the Protocol Tokens. Neither the Investor nor, if the Investor is an entity, any of its officers, directors, employees, agents, shareholders or partners has either directly or indirectly, including, through a broker or finder (i) engaged in any general solicitation, or (ii) published any advertisement, in each case, in connection with the offer and sale of this instrument or the Protocol Tokens. If the Investor is not a United States person, the Investor hereby represents that it has satisfied itself as to the full observance of the laws of its jurisdiction in connection with this instrument and the issuance Protocol Tokens hereunder.
- 5.3 If the Investor is an individual, then the Investor resides in the state or province identified in the Investor Address. If the Investor is a partnership, corporation, limited liability company or other entity, then the office or offices of the Investor in which its principal place of business is identified in the Investor Address. All information provided to the Company and/or its third-party designees for purposes of the Company's KYC (Know-Your-Customer) and AML (Anti-Money-Laundering) checks, including its address and social security number or tax ID number,

is accurate and complete. The funds used for the Purchase Amount were not and are not directly or indirectly derived from any activities that contravene any law, rule, regulation or order (including anti-money laundering laws and regulations) applicable to the Investor. None of: (i) the Investor; (ii) any person controlling or controlled by the Investor; (iii) any person having a beneficial interest in the Investor; or (iv) any person for whom the Investor is acting as agent or nominee in connection with this instrument is: (A) a country, territory, entity or individual named on an OFAC list as provided at <http://www.treas.gov/ofac>, or a person or entity prohibited under the OFAC Programs, regardless of whether or not they appear on the OFAC list; or (B) a senior foreign political figure, or any immediate family member or close associate of a senior foreign political figure.

- 5.4 Other than the representations and warranties of the Company expressly set forth in Section 4, neither the Investor nor any of its representatives or affiliates has relied on any statement, information, representation or warranty (including oral statements, due diligence presentations, etc.), or any omission of any statement, information, representation or warranty, made by the Company or any representative of the Company, in determining to enter into or perform this instrument or any of the transactions contemplated by this instrument. The Company is not making and has not made any representation, warranty or other statement intended to be relied upon or to give rise to any claim, obligation or liability based on the accuracy or completeness thereof, other than the representations and warranties of the Company expressly set forth in Section 4.
- 5.5 The Investor understands and agrees that Protocol Tokens have a limited function and purpose and may be difficult to sell or liquidate for money, monetary equivalents or other property and that the Company does not intend to establish or facilitate any secondary market to encourage or ensure any liquidity or other avenue for the disposition of Protocol Tokens. The Investor wishes to acquire and use Protocol Tokens for their intended purposes. The Investor is not seeking to acquire Protocol Tokens for any investment purpose beyond the efforts of the Company to bring about the Token Launch Event. The Investor understands that the uses of Protocol Tokens are still under development by the Company, that the terms and conditions of Protocol Tokens as they relate to the Company and its products, services and protocols are subject to the discretion of the Company and that Protocol Tokens may be governed by terms or service or other contracts and agreements to which the Investor and other Protocol Tokens holders may become subject and which may be subject to change at the discretion of the Company.

## 6. Miscellaneous

- 6.1 Entire Agreement. This instrument sets forth the entire agreement and understanding of the parties relating to the subject matter herein and supersedes all prior or contemporaneous disclosures, discussions, understandings and agreements, whether oral or written, between them.
- 6.2 Use of Proceeds. The Purchase Amount shall be used to support research, product development, expansion of sales and marketing efforts, working capital and general corporate purposes.
- 6.3 Notices. All notices and other communications given or made pursuant to this instrument shall be in writing and shall be deemed effectively given upon the earlier of actual receipt, or: (i) personal delivery to the party to be notified, (ii) when sent, if sent by electronic mail during normal business hours of the recipient, and if not sent during normal business hours, then on the recipient's next business day, (iii) five days after having been sent by registered or certified mail, return receipt requested, postage prepaid, or (iv) one business day after deposit with a nationally recognized overnight courier, freight prepaid, specifying next business day delivery, with written verification of receipt. All communications shall be sent to the respective parties at: (a) in the case of the Company, the Company Address; and (b) in the case of the Investor, the Investor Address, or to such e-mail address, facsimile number or address as subsequently modified by written notice given in accordance with this Section 6.3.
- 6.4 Assignments. Neither this instrument nor the rights contained herein may be assigned or otherwise Transferred, by operation of law or otherwise, by either party without the prior written consent of the other; *provided, however*, that this instrument and/or the rights contained herein may be assigned without the Company's consent by the Investor: (i) to the Investor's estate, heirs, executors, administrators, guardians and/or successors in the event of Investor's death or disability, or (ii) any other entity who directly or indirectly, controls, is controlled by or is under common control with the Investor, including, without limitation, any general partner, managing member,

officer or director of the Investor, or any venture capital fund now or hereafter existing which is controlled by one or more general partners or managing members of, or shares the same management company with, the Investor, provided, in each case, that each assignee first, as a condition precedent to the effectiveness of such assignment, enters into a joinder agreement, in form and substance reasonably satisfactory to the Company, personally making the representations set forth in Section 5 and agreeing to be bound by this instrument (including the lockup provisions of Section 3) and any and all documents and agreements described in Section 1.1(b); and *provided, further*, that the Company may assign this instrument in whole, without the consent of the Investor, in connection with a reorganization to change the Company's domicile, or to a parent entity of the Company. Any attempted or purported assignment, conveyance or transfer in breach or violation of this Section 6.4 or any other applicable restriction shall be null and void *ab initio*. Transferability of the Certificate Token requires the prior written consent of the Company, which may be granted by the Company making changes on the applicable blockchain system to enable the Certificate Token to become transferable on such blockchain system. Unless the Certificate Token has been voided, the Investor shall not make any transfer or assignment of this SAFT or any rights under this SAFT without transferring the Certificate Token to the same transferee or assignee. In the case of a transfer or assignment of the SAFT by operation of law or that is otherwise involuntary and does not entail transfer of the Certificate Token, or with respect to which the transferee or assignee does not wish to or cannot accept the Certificate Token, the Investor and the transferee or assignee shall notify the Company as promptly as far as reasonably practicable in advance of (if possible) or (if advance notice is not possible) as promptly as reasonably practicable after such transfer or assignment, and, for the avoidance of doubt, the Company may void the Certificate Token, issue a new Certificate Token, switch this SAFT to book-entry-only, or take any other reasonable good faith action to avoid any duplication of this SAFT and the Certificate Token or any rights hereunder or thereunder and to ensure the accuracy of the books and records of the Company and outstanding Certificate Tokens in light of the transfer or assignment.

- 6.5 Amendments. This instrument is one of a series of similar instruments entered into by the Company from time to time. Any provision of this instrument may be amended, waived or modified by written consent of the Company and either (i) the Investor or (ii) investors representing a Majority-in-Interest; *provided, however* that with respect to clause '(ii)': (A) the Purchase Amount may not be amended, waived or modified in this manner and (B) such amendment, waiver or modification treats all such holders in the same manner as the consenting majority-in-interest. The Investor hereby agrees that, if any amendment, waiver or modification of this instrument is (A) approved by the written consents required for such amendment, waiver or modification, the Investor shall promptly (and in any event within one business day of the Company's written request, accompanied by the relevant written consent of other Investors) execute and deliver to the Company such amendment or a written agreement setting forth such waiver or modification. The Investor hereby constitutes and appoints as the proxies of the Investor, and hereby grants a power of attorney to: (A) the Company, and (B) the President, Chief Executive Officer, or similar executive of the Company, and each of them, with full power and substitution, to execute any amendment, modification or waiver the Investor is required to execute pursuant to this Section 6.5 and fails to deliver within the required period of time. Each of the proxy and power of attorney granted in this Section 6.5 is being given in consideration of the agreements and covenants of the parties in connection with the transactions contemplated by this instrument and, as such, each is coupled with an interest, secures the proprietary interest of such donee and the performance of obligations owed to such donee and shall be irrevocable until this instrument terminates pursuant to its terms or is amended to remove or terminate the proxy and power of attorney. The Investor hereby revokes any and all previous proxies or powers of attorney with respect to the matters contemplated herein that may conflict or be inconsistent with the foregoing provisions and shall not hereafter, until this instrument terminates pursuant to its terms or is amended to remove or terminate the proxy and power of attorney, grant, or purport to grant, any other proxy or power of attorney which may conflict or be inconsistent with the foregoing provisions.
- 6.6 Delays and Omissions. No delay or omission to exercise any right, power, or remedy accruing to any party under this instrument, upon any breach or default of any other party under this instrument, shall impair any such right, power, or remedy of such nonbreaching or non-defaulting party, nor shall it be construed to be a waiver of or acquiescence to any such breach or default, or to any similar breach or default thereafter occurring, nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring.

- 6.7 No Equity Rights. The Investor is not entitled, as a holder of this instrument, to vote on, or receive equity-based rights (including dividend or voting rights), or be deemed the holder of shares of the Company for any purpose, nor will anything contained herein be construed to confer on the Investor, as such, any of the rights of a shareholder of the Company or any right to vote for the election of directors or upon any matter submitted to shareholders at any meeting thereof, or to give or withhold consent to any corporate action or to receive notice of meetings, or to receive subscription rights or otherwise.
- 6.8 Governing Law. All rights and obligations hereunder will be governed by the laws of the Governing Jurisdiction, without regard to the conflicts of law provisions of such jurisdiction.
- 6.9 Remedies Cumulative. All remedies, whether under this instrument or by law or otherwise afforded to any party, shall be cumulative and not alternative.
- 6.10 Severability. In the event any one or more of the provisions of this instrument is for any reason held to be invalid, illegal or unenforceable, in whole or in part or in any respect, or in the event that any one or more of the provisions of this instrument operate or would prospectively operate to invalidate this instrument, then and in any such event, such provision(s) only will be deemed null and void and will not affect any other provision of this instrument and the remaining provisions of this instrument will remain operative and in full force and effect and will not be affected, prejudiced, or disturbed thereby.
- 6.11 Captions. The headings and captions used in this instrument are used only for convenience and are not to be considered in construing or interpreting this instrument.
- 6.12 Signature Counterparts. This SAFT may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including blockchain systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any applicable electronic signature laws.
- 6.13 Decimal Precision and Truncation. All token values in the smart contracts referred to herein are represented as uint256 integers with 18-decimal-place precision ( $10^{18}$ ). Percentages, multipliers and rates are stored with 4-decimal-place precision ( $10^4$ ). Precision of mathematic operations will be normalized to 18 decimals of precisions ( $10^{18}$ ) and any operations exceeding that will be truncated.

## RESTRICTIVE LEGENDS

**RIA COMPLIANCE LEGEND.** THE CERTIFICATE TOKEN MAY NOT BE USED TO EFFECT A TRANSFER OR TO OTHERWISE FACILITATE A CHANGE IN BENEFICIAL OWNERSHIP OF THIS SAFT WITHOUT THE PRIOR CONSENT OF THE COMPANY.

**RESTRICTED SECURITIES LEGEND.** THIS INSTRUMENT, THE CERTIFICATE TOKEN, AND ANY SECURITIES ISSUABLE PURSUANT HERETO OR THERETO ARE “RESTRICTED SECURITIES” AS DEFINED IN SEC RULE 144.

**UNREGISTERED SECURITIES LEGEND.** THIS INSTRUMENT, THE CERTIFICATE TOKEN AND ANY SECURITIES ISSUABLE PURSUANT HERETO OR THERETO HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR UNDER THE SECURITIES LAWS OF CERTAIN STATES. THESE SECURITIES MAY NOT BE OFFERED, SOLD OR OTHERWISE TRANSFERRED, PLEDGED OR HYPOTHECATED EXCEPT AS PERMITTED IN THIS SAFT AND UNDER THE SECURITIES ACT AND APPLICABLE STATE SECURITIES LAWS PURSUANT TO AN EFFECTIVE REGISTRATION STATEMENT OR AN EXEMPTION THEREFROM.

**CONTENTIOUS HARDFORK LEGEND.** IN THE EVENT THAT THE BLOCKCHAIN SYSTEM ON WHICH THE CERTIFICATE TOKEN WAS ORIGINALLY ISSUED UNDERGOES A PERSISTENT “CONTENTIOUS HARDFORK” (AS COMMONLY UNDERSTOOD IN THE BLOCKCHAIN INDUSTRY, RESULTING IN TWO INDEPENDENT BLOCKCHAIN SYSTEMS THAT ARE BOTH REASONABLY EXPECTED TO HAVE INDEPENDENT PERSISTENT COMMERCIAL VALUE), NO COPY OF THE CERTIFICATE TOKEN MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED UNTIL THE COMPANY HAS DETERMINED, IN ITS SOLE AND ABSOLUTE DISCRETION, WHICH BLOCKCHAIN SYSTEM (AND WHICH CERTIFICATE TOKENS) TO TREAT AS CANONICAL, AND THEN ONLY THE CERTIFICATE TOKEN THUS DETERMINED BY THE COMPANY TO BE CANONICAL MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED (TO THE EXTENT OTHERWISE PERMITTED). IN THE EVENT THAT THE BLOCKCHAIN SYSTEM DETERMINED BY THE COMPANY TO BE CANONICAL FOLLOWING A CONTENTIOUS HARDFORK ITSELF SUBSEQUENTLY UNDERGOES ANOTHER CONTENTIOUS HARDFORK, THIS RESTRICTIVE LEGEND SHALL LIKEWISE APPLY TO SUCH OTHER CONTENTIOUS HARDFORK, MUTATIS MUTANDIS.